

Whangarei District Council Meeting Minutes

Date: Thursday, 27 April, 2023
Time: 9:00 a.m.
Location: Council Chamber
Forum North, Rust Avenue
Whangarei

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

Scribe N. Pestana (Team Leader Democracy)

Administrative matters

His Worship covered the following administrative matters:

- Meeting being livestreamed.
- Supplementary report covering Item 7.7 – LGNZ Remits was distributed prior to the meeting but not within the legislative timeframe.
- Extra ordinary business – Item 7.7 requires Council resolution to consider at today's meeting.
- Confidential Supplementary reports – Item 1.5 and 1.6 were distributed subsequent to the agenda being circulated but within LGOIMA timeframes.

1. Karakia/Prayer

Cr Peters opened the meeting with a karakia/prayer.

2. Declarations of Interest / Take Whaipānga

No declarations of interest were made.

3. Apologies / Kore Tae Mai

There were no apologies.

4. Public Forum / Huihuinga-a-tangata

Gillian Bruce – Request Council to provide public toilets in Maungatapere Village. Maungatapere is a long way from Dargaville and Whangarei and the need is currently met by local businesses. Request for public toilets for Maungatapere as part of the LTP process.

5. Petition

Gillian Bruce tabled a petition with 650 signatures in support of the request for Council to provide public toilets in Maungatapere Village.

Elected Member Apology

Cr Jayne Golightly, with the leave of the Chair, apologised for breaching the council's Code of Conduct and for any stress this may have caused to her fellow Councillors.

6. Confirmation of Minutes of Previous Meetings of the Whangarei District Council / Whakatau Meneti

6.1 Minutes Whangarei District Council Meeting held 23 March 2023

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That the minutes of the Whangarei District Council meeting held on Thursday 23 March 2023, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6.2 Minutes Extra ordinary Whangarei District Council 16 March 2023

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That the minutes of the Whangarei District Council meeting held on Thursday 16 March 2023, including the confidential section having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6.3 Minutes Whangarei District Council Meeting held 30 March 2023

Moved By His Worship the Mayor

Seconded By Cr Carol Peters

1. That Council note the grounds for moving into confidential (exclusion of the public) were not specified at the time, and request the minutes be amended to record the grounds for moving into confidential are Section 7(2)(c)(ii) of the Local Government Official Information and Meetings Act 1987, as follows:

“(2) Subject to sections, 6, 8 and 17, this section applies if, and only if the withholding of information is necessary to –

- (c) protect information which is subject to an obligation of confidence or which any person has been or could be compelled to provide under the authority of any enactment, where the making available of the information –
- (ii) would be likely otherwise to damage the public interest”;

and

2. That the minutes of the Whangarei District Council meeting held on Thursday 30 March 2023, including the confidential section having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting, subject to the grounds for moving into confidential (open minutes) being recorded as Section 7(2)(c)(ii) of the Local Government Official Information and Meetings Act 1987.

Carried

Secretarial Note: Cr Peters suggested that the Senior Leadership Team review what is going into confidential and report back to Council on this.

7. Decision Reports / Whakatau Rīpoata

7.1 Review of Designation for Emergency management Of Buildings

Moved By Cr Simon Reid

Seconded By Cr Nicholas Connop

That the Council resolves pursuant to s133BG (1) of the Building Act 2004 that the designation put in place on 15 February 2023 is still needed for the emergency management of affected buildings.

Carried

7.2 Contract Extension - Water Meter Reading

Moved By Cr Paul Yovich

Seconded By Cr Simon Reid

That the Council approves:

1. The extension of CON14073 Water Meter Reading to Arthur D Riley and Company Limited, from 1 July 2023 until 30 June 2026 on an initial 1 year term with two further extensions of 1 year, to be approved by the Infrastructure Committee or Council.
2. The total contract value be increased from \$1,072,379.00 to \$1,578,729.00 (excluding GST) an increase of \$506,350.00 (excluding GST).

Carried

7.3 Contract Extension - Electrical and Electronic Maintenance - Water Supply

Moved By Cr Paul Yovich

Seconded By Cr Jayne Golightly

That the Council approves:

1. The extension of Contract 15002 – Electrical and Electronic Maintenance, to McKay Limited, from 1 July 2023 until 30 June 2026 on an initial 1 year term with two further extensions of 1 year, to be approved by the Infrastructure Committee or Council.
2. The total contract value be increased from \$2,337,545.06 (excluding GST) to \$3,899,509.43 (excluding GST) an increase of \$1,561,964.37 (excluding GST)

Carried

7.4 Old Municipal Building Decision

Moved By Cr Carol Peters

Seconded By Cr Nicholas Connop

That the Council:

- a. Approves additional budget of \$3,254,784 (bringing the total project budget to \$7,430,961) so that the Old Municipal Building restoration project can progress from the design phase to the construction phase. *(Noting that \$1,998,429 of \$3,254,784 is already allocated in the draft Annual Plan).*

- b. Approves the necessary budget adjustment be made to the final 2023-24 Annual Plan to provide a total project budget of \$7,430,961.
- c. Notes total insurance proceeds of \$2,365,489 for Material Damage and Business Interruption have been received by Council.
- d. Notes the variation from the procurement policy requirement to not openly tender. This is due to a previous decision of council in a confidential agenda in March 2022. This variation will be signed off by the Chief Executive as required by the procurement policy.
- e. Notes that should any application for external funding be approved, the Council funded portion will be reduced accordingly.

Amendment

Moved By Cr Simon Reid

Seconded By Cr Jayne Golightly

That the Council:

- 1. Investigate selling the Old Municipal Building to a private developer subject to their giving a satisfactory undertaking to meet Council's future aspirations for the building.

On the amendment being put Cr Halse called for a division:

Recorded	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney		X	
Cr Nicholas Connop		X	
Cr Ken Couper		X	
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding		X	
Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Marie Olsen	X		
Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Phoenix Ruka		X	

Cr Paul Yovich	X		
Results	5	9	0

The amendment was Lost (5 to 9)

Further Amendment

Moved By Cr Marie Olsen

Seconded By Cr Gavin Benney

That the Council:

1. Progresses Option 1 Demolition of the Old Municipal Building and reports back to Council once HNZPT and resource consents have been obtained; and
2. Reports back to Council in relation to the potential need to consult in accordance with Council's Significance and Engagement Policy; and
3. Notes the report.

Procedural Motion

Moved By Cr Ken Couper

Seconded By Cr Scott McKenzie

That the amendment now be put.

Carried

On the amendment being put Cr Reid called for a division:

Recorded	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney		X	
Cr Nicholas Connop		X	
Cr Ken Couper		X	
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding		X	
Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Marie Olsen	X		
Cr Carol Peters		X	

Cr Simon Reid	X		
Cr Phoenix Ruka		X	
Cr Paul Yovich	X		
Results	5	9	0

The amendment was Lost (5 to 9)

Procedural Motion

Moved By Cr Ken Couper

Seconded By Cr Patrick Holmes

That the motion now be put.

Carried

On the motion being put Cr Reid called for a division:

Recorded	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly		X	
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen		X	
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka		X	
Cr Paul Yovich		X	
Results	8	6	0

Carried (8 to 6)

The meeting adjourned at 10.30am during discussion on Item 7.4 and reconvened at 10.35am and then adjourned at 10.35am and reconvened at 10.46am where discussion on Item 7.4 resumed.

7.5 Speed Limit Review Whangarei Heads Recommendations

Moved By Cr Patrick Holmes

Seconded By Cr Simon Reid

That the Council

1. Adopts the Regional Speed Limit Review Whangarei Heads Catchment Recommendations Report (Attachment A).
2. Adopts the Interim Speed Management Plan for Whangarei Heads (Attachment B).
3. Receives the report Regional Speed Reviews – Whangarei Heads Catchment Technical Report (Attachment C).
4. Delegates the Chief Executive to make any necessary minor drafting or presentation amendments to the attached Recommendations Report (Attachment A) and Interim Speed Management Plan for Whangarei Heads (Attachment B) and to approve the final design and layout of the documents prior to final printing and publication.

Carried

Crs Yovich and Halse requested their votes against be recorded.

7.6 Temporary Road Closure - International Rally of Whangarei 2023

Moved By Cr Simon Reid

Seconded By Cr Carol Peters

That the Whangarei District Council,

1. Approves the temporary closure of the following roads to ordinary traffic for the International Rally of Whangarei on the following dates in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Saturday 13 May 2023

(Special Stages 4 & 8 MARLOW)

Marlow Road, from 926 Marlow Road to Riponui Road intersection

Riponui Road, from Marlow Road intersection to Otakirangi Road

Otakirangi Road, from Riponui Road intersection to Swamp Road including Rowlands Road

Period of Closure: 9.15am to 1.30pm & 2.30pm to 6.15pm

Please note: The Start of this stage begins on a section of road within the Far North District boundary.

Saturday 13 May 2023

(Hikurangi Refuel and community event)

George Street, from Alfred Street to Hill Street (Alfred and Hill streets remain open)

King Street, from George Street to Church Street

Period of Closure: 8am to 11.30am and 1pm to 4.30pm

Sunday 14 May 2023

(Special Stages 14 & 18 WAIPU CAVES)

Waipu Caves Road, from 878 Waipu Caves Road to Mangapai Caves Road

Mangapai Caves Road, from Waipu Caves Road to Graham Road

Graham Road, from Mangapai Caves Road to Ruarangi Road

Ruarangi Road, from Graham Road to Mangapai Road

Period of Closure: 8.30am to 4pm

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notices of these temporary road closures.

Carried

Extra ordinary Business

Item 7.7 – LGNZ Remit Proposals 2023 was distributed subsequent to the agenda being circulated but now within the timeframe specified in LGOIMA, a resolution of council is required to consider this matter at today's meeting.

Item 7.7 was not included on the agenda for the reason that the proposals were received after the agenda closure. Item 7.7 should be considered at today's meeting in order to meet the LGNZ remit deadline.

Moved By His Worship the Mayor

Seconded By Cr Marie Olsen

That council consider Item 7.7 – LGNZ Remit Proposals 2023, at today's meeting.

Carried

7.7 LGNZ Remit proposals from Council 2023

Moved By His Worship the Mayor

Seconded By Cr Marie Olsen

That the Council:

1. Support the following remits to be presented to the LGNZ Zone 1 meeting for consideration:
 - a. Ensure Local Government Elections are fully accessible to disabled people who decide to stand as a candidate.
 - b. Enable Councils to determine penalties for parking infringements. Currently these are set by legislation.
2. Delegate to the Chief Executive the preparation of the remit application form for presentation to the Zone 1 meeting.

Carried

8. Information Reports / Ngā Pūrongo Kōrero

8.1 Election Services Report for 2022 Elections

Moved By Cr Patrick Holmes

Seconded By Cr Gavin Benney

That Council receive the Election Services report to the 2022 Local Government Triennial Elections.

Carried

9. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Scott McKenzie

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 23 March 2023	Good reason to withhold information exists under Section 7 Local	Section 48(1)(a)

1.2	Confidential Minutes Extra ordinary Whangarei District Council 16 March 2023	Government Official Information and Meetings Act 1987	
1.3	Parihaka Mast Transmission		
1.4	Increase Delegations Chief Executive		
1.5	Confidential Minutes Whangarei District Council 30 March 2023		
1.6	Chief Executive's Performance Goals 2023 2024		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	For the reasons as stated in the open minutes	
1.3	To enable Council to carry on without prejudice or disadvantage negotiations. To enable Council to carry on without prejudice or disadvantage commercial activities	Section 7(2)(i) Section 7(2)(h)
1.4	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(h) Section 7(2)(i)
1.5	Information subject to obligation of confidence for public interest	Section 7(2)(c)(ii)
1.6	To protect the privacy of natural persons	Section 7(2)(a)

10. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting with a karakia/prayer at 12.30pm.

Confirmed this 25th day of May 2023

His Worship the Mayor Vince Cocurullo (Chairperson)